

Amendment No. 1 to HB2147

Farmer
Signature of Sponsor

AMEND Senate Bill No. 2434

House Bill No. 2147*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 39-13-903(a)(6), is amended by deleting "subdivision (a)(6)" in subdivisions (a)(6)(B) and (a)(6)(C) and substituting "subdivision (a)(7)".

SECTION 2. Tennessee Code Annotated, Section 39-13-903(a), is amended by adding the following as a new subdivision (5) and renumbering the subsequent subdivisions:

(5) Knowingly uses an unmanned aircraft over the grounds of a public school that serves students in any of the grades kindergarten through twelve (K-12) with the intent to conduct surveillance of the school grounds without permission of a school administrator, the director of schools, or the director's designee. This subdivision (a)(5) does not apply to:

(A) A law enforcement officer acting within the scope of the law enforcement officer's lawful duties; or

(B) The operator of an unmanned aircraft that is being used for a commercial purpose if the operator is authorized by the federal aviation administration to conduct operations in that airspace;

SECTION 3. Tennessee Code Annotated, Section 39-13-903, is amended by deleting subsection (b) and substituting:

(b)

(1) An offense under subdivisions (a)(1)-(6) is a Class C misdemeanor.

(2) An offense under subdivision (a)(7) is a Class E felony.

SECTION 4. Tennessee Code Annotated, Section 39-13-902, is amended by deleting subdivision (a)(14) and substituting:

(14) Of public real property or a person on that property, except as prohibited by § 39-13-903(a)(5).

SECTION 5. This act takes effect July 1, 2026, the public welfare requiring it.